

25STCV07857 25STCV07857

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-12

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Case Number: 25STCV07857 Hearing Date: August 12, 2026 Dept: 26

TENTATIVE

RULING:

Defendant Upgrade Inc.'s Demurrer to the First

Amended Complaint is sustained without leave to amend.

Defendant is to

file a proposed judgment of dismissal within 20 days.

Analysis:

Plaintiff Brandon Alfred ("Plaintiff"), in propria persona, filed the instant action against Defendant Upgrade, Inc. ("Defendant") on March 19, 2025. The case was originally assigned to an Independent Calendar courtroom. On March 13, 2026, the Court sustained Defendant's Demurrer to the Complaint with leave to amend. (Minute Order, 03/13/26.) Plaintiff filed the First Amended Complaint on the same day.

Defendant filed and

served the instant Demurrer to the First Amended Complaint on May 13, 2026. On May 28, 2026, the Court reassigned the action to the Limited Civil Court. Plaintiff filed a Notice of Non-Opposition on August 6, 2026. No opposition to the Demurrer has been filed to date.

Discussion

The Demurrer is not accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Demurrer, Penn Decl., ¶14.)

Instead, defense counsel attempts to excuse their failure to meet and confer on the grounds that Defendant was not actually served with the First Amended Complaint, that the First Amended Complaint is devoid of allegations for the parties to discuss, and that the meet and confer regarding the original Complaint was not successful. (Ibid.) The Court finds that none of these grounds are a basis to fail to meet and confer as required by the statute; the meet and confer effort is not in Defendant's discretion based on the likelihood of success. (See Code Civ. Proc., § 430.41.) Although failure to meet and confer is not grounds to overrule the Demurrer, it may be grounds to strike the Demurrer, place the hearing off calendar, or continue the hearing to ensure compliance. Defendant is admonished for its non-compliance with the statutory mandate to meet and confer and warned that future non-compliance may result in the outcomes mentioned above.

Defendant demurs to the First Amended Complaint for failure to allege sufficient facts and uncertainty. (Demurrer, p. 1:8-12.) Special demurrers, however, are not permitted in the Limited Civil Court. (Code Civ. Proc., § 92, subd. (c).) Therefore, the Court will not consider the Demurrer for uncertainty.

Regarding whether the First Amended Complaint fails to allege sufficient facts in support of the purported cause of action for breach of contract, Defendant demurs on the basis that the pleading includes no supporting factual allegations. The First Amended Complaint consists of the Judicial Council form pleading PLD-C-00, and checks the box for "breach of contract" cause of action. (FAC, ¶8.) However, although the form states that a cause of action must be attached, the First Amended Complaint does not include any factual allegation attachments. Nor are any facts alleged anywhere else in the pleading. (FAC, pp. 1-2.) Instead, Plaintiff has attached the following exhibits: "Upgrade Visa® Card Fees", Upgrade Visa® Card Program Agreement For Upgrade Cardholder (September 15, 2020), and what appears to be the first page of a credit card account statement. (Id. at pp. 3-10.) None of the attached exhibits are explained or referenced in any alleged facts, as there are no such allegations. Evidentiary facts "found in recitals of exhibits attached to a complaint or superseded complaint [] can be considered on demurrer," but the exhibits must be incorporated by reference in the complaint. (See *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) Because the exhibits here are not incorporated by reference, the Court cannot consider the exhibits attached to the First Amended Complaint for purposes of determining whether any cause of action is sufficiently stated.

A cause of action for breach of contract must allege (1) the existence of the contract; (2) Plaintiff's performance of the contract; (3) defendant's breach of the contract; and (4) the resulting damages to the Plaintiff. (Lortz v. Connell (1969) 273 Cal.App.2d 286, 290.) Due to the lack of any allegations, the First Amended Complaint does not articulate any of these elements. Therefore, the Demurrer to the First Amended Complaint is sustained for failure to state a cause of action.

Nor has Plaintiff filed any opposition to demonstrate on what basis leave to amend might be granted. As the pleading party, Plaintiff bears the burden to show that leave to amend should be granted, which the Court must allow where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) Therefore, leave to amend is denied.

Conclusion

Defendant Upgrade Inc.'s Demurrer to the First Amended Complaint is sustained without leave to amend.

Defendant is to file a proposed judgment of dismissal within 20 days.

Moving party to give notice.